20159
5132355

CLEAR WATER CONCEPTS
TAHOR ENTERPRISES, LLC
945 MC KINNEY ST STE 11184
HOUSTON TX 77002

20159
5132355

CLEAR WATER CONCEPTS
TAHOR ENTERPRISES, LLC
945 MC KINNEY ST STE 11184
HOUSTON TX 77002

SECURA INSURANCE COMPANIES
PO Box 819
Appleton, WI 54912-0819
(920) 739-3161

SECURA Insurance Company

COMMERCIAL AUTOMOBILE POLICY

GENERAL CHANGE ENDORSEMENT

POLICY NO. 20-A-003421736-0 END: 001

ACCOUNT NUMBER: 5132355

NAMED INSURED AND MAILING ADDRESS

TAHOR ENTERPRISES, LLC
DBA: CLEAR WATER CONCEPTS
945 MC KINNEY ST STE 11184
HOUSTON, TX 77002

AGENCY AND MAILING ADDRESS 020159

WILCOCK INS GROUP LLC
PO BOX 50580
MESA, AZ 85208

(480) 464-2288

POLICY PERIOD: FROM 10/04/2024 TO 10/04/2025 AT 12:01 AM STANDARD TIME AT YOUR MAILING ADDRESS SHOWN ABOVE

Effective 10/14/2024 this policy is amended as shown.

COMMERCIAL AUTO

For an additional/return premium, the items below are changed as indicated:

Amending limits as follows,
-$1,000,000 Each Accident Liability
-$1,000,000 Each Accident Uninsured Motorits
-$1,000,000 Each Accident Underinsured Motorists

Adding auto additional insured wrap

This is not a bill - Invoice to follow.
Total premium is payable in monthly installments.

ANNUALIZED EFFECT OF ENDORSEMENT	$	2,710
ADDITIONAL PREMIUM	$	2,639
TOTAL ADDITIONAL PREMIUM	$	2,639.00

SECURA Insurance Company

COMMERCIAL AUTOMOBILE POLICY

GENERAL CHANGE ENDORSEMENT

POLICY NO. 20-A-003421736-0 END: 001
INSURED: TAHOR ENTERPRISES, LLC

EFFECTIVE DATE: 10/14/2024
AGENT: WILCOCK INS GROUP LLC

ITEM THREE - SCHEDULE OF COVERED AUTOS YOU OWN

NO	*KEY	TYPE	YEAR/MAKE/MODEL
1	M	Trucks, Tractors and Trailers	2022 RAM 2500
2	M	Trucks, Tractors and Trailers	2021 GMC\CHEVY 2500HD
3	M	Trucks, Tractors and Trailers	2018 RAM 2500
4	M	Trucks, Tractors and Trailers	2021 GMC\CHEVY 2500HD

NO	VIN/SERIAL	ST	TERR	ZONE ORG	ZONE DEST	CLASS	SIZE/SEAT
1	3C7WR4AJ1NG117686	AZ	123			01183	Light Trucks
2	1GB0WLE75MF196806	AZ	123			01183	Light Trucks
3	3C6LR4AT9JG243295	AZ	123			01183	Light Trucks
4	1GB0WLE74MF228807	AZ	123			01183	Light Trucks

NO	RADIUS	USE	INDUSTRY	***USED FOR TNS AND/OR DELIVERY
1	Local(Up To 50 Miles)	Service	Contractors	
2	Local(Up To 50 Miles)	Service	Contractors	
3	Local(Up To 50 Miles)	Service	Contractors	
4	Local(Up To 50 Miles)	Service	Contractors	

SECURA Insurance Company

COMMERCIAL AUTOMOBILE POLICY

GENERAL CHANGE ENDORSEMENT

POLICY NO. 20-A-003421736-0 END: 001
INSURED: TAHOR ENTERPRISES, LLC

EFFECTIVE DATE: 10/14/2024
AGENT: WILCOCK INS GROUP LLC

	COVERED AUTOS LIABILITY				PIP		ADDED PIP	
NO	LIMIT	DED	DED TYPE	PREM	LIMIT	PREM	LIMIT	PREM
1	$1,000,000	$1,000	Property Damage	$546	N/A	$0	N/A	$0
2	$1,000,000	$1,000	Property Damage	$541	N/A	$0	N/A	$0
3	$1,000,000	$1,000	Property Damage	$488	N/A	$0	N/A	$0
4	$1,000,000	$1,000	Property Damage	$541	N/A	$0	N/A	$0

	**MED PAY		UM		UMPD		UIM		UIMPD	
NO	LIMIT	PREM	LIMIT	PREM	LIMIT	PREM	LIMIT	PREM	LIMIT	PREM
1	$1,000	$0	$1,000,000	$4	$0	$0	$1,000,000	$52	$0	$0
2	$1,000	$0	$1,000,000	$4	$0	$0	$1,000,000	$52	$0	$0
3	$1,000	$0	$1,000,000	$4	$0	$0	$1,000,000	$52	$0	$0
4	$1,000	$0	$1,000,000	$4	$0	$0	$1,000,000	$52	$0	$0

	COST	STATED	OTC			COLLISION	
NO	NEW	AMT	COVERAGE	DED	PREM	DED	PREM
1	$35,435	$0	Comprehensive	$2,000	$0	$2,000	$0
2	$33,545	$0	Comprehensive	$2,000	$0	$2,000	$0
3	$32,545	$0	Comprehensive	$2,000	$0	$2,000	$0
4	$33,545	$0	Comprehensive	$2,000	$0	$2,000	$0

	TOWING		AUDIO		TAPE	UNIT	STATE	TOTAL
NO	LIMIT	PREM	LIMIT	PREM	PREM	PREM	FEES	AMOUNT
1	$0	$0	$0	$0	$0	$602	$0.00	$602.00
2	$0	$0	$0	$0	$0	$597	$0.00	$597.00
3	$0	$0	$0	$0	$0	$544	$0.00	$544.00
4	$0	$0	$0	$0	$0	$597	$0.00	$597.00

*KEY: “A” = Add, “D” = Delete, “M” = Modify. **MED PAY = Extraordinary Medical Benefits in Pennsylvania ***USED FOR TNS AND/OR DELIVERY:“D” = Delivery, “T” = Transportation Network, ”B” = Both Delivery Option and Transportation Network

SECURA Insurance Company

COMMERCIAL AUTOMOBILE POLICY

GENERAL CHANGE ENDORSEMENT

POLICY NO. 20-A-003421736-0 END: 001 **INSURED:** TAHOR ENTERPRISES, LLC	**EFFECTIVE DATE:** 10/14/2024 **AGENT:** WILCOCK INS GROUP LLC

ITEM FIVE – SCHEDULE FOR NON-OWNERSHIP COVERED AUTOS LIABILITY

STATE: AZ

NAMED INSURED'S BUSINESS	RATING BASIS	NUMBER	LIMIT	DEDUCTIBLE	PREMIUM
Other than Garage Service Operations, Social Service Agencies and Educational Institutions and Commercial Driving Schools	Number of Employees	6	$ 1,000,000	$	$ 30
				Total Premium	$ 30

THESE DECLARATIONS, IF APPLICABLE, TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE FORM(S) AND ENDORSEMENTS, AND SUPPLEMENTAL FORM DECLARATION(S), IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBERED POLICY.

SECURA INSURANCE COMPANIES
PO Box 819
Appleton, WI 54912-0819
(920) 739-3161

SECURA Insurance Company

COMMERCIAL AUTOMOBILE POLICY

FORMS SCHEDULE

POLICY NO. 20-A-003421736-0 END: 001

ACCOUNT NUMBER: 5132355

NAMED INSURED AND MAILING ADDRESS

TAHOR ENTERPRISES, LLC
DBA: CLEAR WATER CONCEPTS
945 MC KINNEY ST STE 11184
HOUSTON, TX 77002

AGENCY AND MAILING ADDRESS 020159

WILCOCK INS GROUP LLC
PO BOX 50580
MESA, AZ 85208

(480) 464-2288

POLICY PERIOD: FROM 10/04/2024 TO 10/04/2025 AT 12:01 AM STANDARD TIME AT YOUR MAILING ADDRESS SHOWN ABOVE.

NOTE: IF NO ENTRY APPEARS ON THE FOLLOWING ENDORSEMENTS, INFORMATION REQUIRED TO COMPLETE THE FORM WILL BE SHOWN ON THE SUPPLEMENTAL FORM DECLARATION IMMEDIATELY FOLLOWING THE APPLICABLE ENDORSEMENT

COMMERCIAL AUTO POLICY FORMS	
CAE 0131 1508	Auto Additional Insured WRAP
CA2139 1013	Arizona Uninsured Motorists Coverage
CA2140 1013	Arizona Underinsured Motorists Coverage

THIS ENDORSEMENT CHANGES YOUR POLICY. PLEASE READ IT CAREFULLY.

AUTO ADDITIONAL INSURED WRAP

This endorsement modifies insurance provided under the following:
BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. AUTOMATIC ADDITIONAL INSURED – PRIMARY AND NONCONTRIBUTORY
SECTION II – COVERED AUTOS LIABILITY COVERAGE, subsection A. Coverage, paragraph 1. Who Is An Insured is amended to add:

d. (1) **Automatic Additional Insured – Primary And Noncontributory**

Any person or organization is an additional insured when you and such person or organization have agreed in writing prior to a loss that such person or organization be added as additional insured on your policy. Such person or organization is an additional insured only with respect to liability for "bodily injury" or "property damage" resulting from the ownership, maintenance or use of a covered "auto", provided the "bodily injury" or "property damage" is caused, in whole or in part, by you or by those acting on your behalf. This insurance is primary and is not contributing with any other insurance carried by the additional insured.

(2) **Blanket Lessor Additional Insured Provisions**

If the additional Insured is a lessor of a "leased auto";

(a) **Coverage**

i. Any "leased auto" that is a covered "auto" will be considered a covered "auto" you own and not a covered "auto" you hire or borrow.

For a covered "auto" that is a "leased auto" Who Is An Insured is changed to include as an "Insured" the lessor.

ii. The coverages provided under this endorsement apply to any "leased auto" until the policy expiration date, or when the lessor or his or her agent takes possession of the "leased auto", whichever occurs first.

(b) **Loss Payable Clause**

i. We will pay, as interest may appear, you and the lessor for "loss" to a "leased auto".

ii. The insurance covers the interest of the lessor unless the "loss" results from fraudulent acts or omissions on your part.

iii. If we make any payment to the lessor, we will obtain his or her rights against any other party.

(c) The lessor is not liable for payment of your premiums.

(d) **Additional Definition**

As used in this endorsement:

"Leased auto" means an "auto" leased or rented to you including any substitute, replacement or extra "auto" needed to meet seasonal or other needs, under a leasing or rental agreement that required you to provide direct primary insurance for the lessor.

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B. WAIVER -- TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

SECTION IV – BUSINESS AUTO CONDITIONS, subsection A. Loss Conditions, paragraph 5. Transfer Of Rights Of Recovery Against Others To Us is amended to add:

We waive any right of recovery we may have against any person or organization when you and such person or organization have agreed in writing in a contract or agreement that such person or organization be waived from recovery because of payments we make for injury or damage arising out of an "accident" and resulting from the ownership, maintenance or use of a covered "auto". However, our rights may only be waived prior to the “accident” for which we make payment under this Coverage Part. The insured must do nothing after a loss to impair our rights.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ARIZONA UNINSURED MOTORISTS COVERAGE

For a covered "auto" licensed or principally garaged in, or "auto dealer operations" conducted in, Arizona, this endorsement modifies insurance provided under the following:

AUTO DEALERS COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

This endorsement changes the policy effective on the inception date of the policy unless another date is indicated below.

Named Insured: TAHOR ENTERPRISES, LLC

Endorsement Effective Date: 10/14/2024

SCHEDULE

Limit Of Insurance: $	1,000,000 **Each "Accident"**
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

A. Coverage

1. We will pay all sums the "insured" is legally entitled to recover as compensatory damages from the owner or driver of an "uninsured motor vehicle". The damages must result from "bodily injury" sustained by the "insured" caused by an "accident". The owner's or driver's liability for these damages must result from the ownership, maintenance or use of the "uninsured motor vehicle".
2. Any judgment for damages arising out of a "suit" brought without our written consent is not binding on us.

B. Who Is An Insured

If the Named Insured is designated in the Declarations as:

1. An individual, then the following are "insureds":
   a. The Named Insured and any "family members".
   b. Anyone else "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.
   c. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".
2. A partnership, limited liability company, corporation or any other form of organization, then the following are "insureds":
   a. Anyone "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.
   b. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".

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C. Exclusions

This insurance does not apply to any of the following:

1. Punitive or exemplary damages.
2. Any claim settled without our consent.
3. The direct or indirect benefit of any insurer or self-insurer under any workers' compensation, disability benefits or similar law.
4. Anyone using a vehicle without a reasonable belief that the person is entitled to do so.
5. "Bodily injury" arising directly or indirectly out of:
   a. War, including undeclared or civil war;
   b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
   c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

D. Limit Of Insurance

1. Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for all damages resulting from any one "accident" is the Limit Of Insurance for Uninsured Motorists Coverage shown in the Schedule or Declarations.
2. No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Liability Coverage form, Medical Payments Coverage endorsement or Underinsured Motorists Coverage endorsement attached to this Coverage Part.

   We will not make a duplicate payment under this coverage for any element of "loss" for which payment has been made by or for anyone who is legally responsible, including all sums paid under the policy's Covered Autos Liability Coverage.

   We will not pay for any element of "loss" for which an "insured" is entitled to receive payment under any workers' compensation, disability benefits or similar law.

E. Changes In Conditions

The Conditions are changed for Uninsured Motorists Coverage as follows:

1. **Other Insurance** in the Auto Dealers and Business Auto Coverage Forms and **Other Insurance – Primary And Excess Insurance Provisions** in the Motor Carrier Coverage Form are changed by addition of the following:
   a. The reference to "other collectible insurance" applies only to other collectible uninsured motorists insurance.
   b. Any insurance we provide with respect to a vehicle owned by the Named Insured or, if the Named Insured is an individual, any "family member", that is not a covered "auto" for Uninsured Motorists Coverage under this Coverage Form shall be excess over any other collectible uninsured motorists insurance providing coverage on a primary basis.
2. **Duties In The Event Of Accident, Claim, Suit Or Loss** in the Business Auto and Motor Carrier Coverage Forms and **Duties In The Event Of Accident, Claim, Offense, Suit, Loss Or Acts, Errors Or Omissions** in the Auto Dealers Coverage Form are changed by adding the following:
   a. Promptly notify the police if a hit-and-run driver is involved; and
   b. Promptly send us copies of the legal papers if a "suit" is brought.
3. **Transfer Of Rights Of Recovery Against Others To Us** is changed by adding the following:

   If we make any payment under this coverage, and the "insured", or someone on behalf of the "insured", has a right to recover damages from the owner or operator of the "uninsured motor vehicle", we shall be subrogated to that right.

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4. **Two Or More Coverage Forms Or Policies Issued By Us** Condition is replaced by the following:

   If this Coverage Form and any other Coverage Form or policy issued to the Named Insured by us or any company affiliated with us apply to the same "accident", only one Coverage Form or policy shall be applicable to the "accident". The Named Insured shall select the one Coverage Form or policy that will apply. This condition does not apply to any Coverage Form or policy issued by us or any affiliated company which is excess insurance over this Coverage Form.

5. The following conditions are added:

   a. Arbitration

   (1) If we and an "insured" disagree whether the "insured" is legally entitled to recover damages from the owner or driver of an "uninsured motor vehicle" or do not agree as to the amount of damages that are recoverable by that "insured", then the matter may be arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Both parties must agree to arbitration. If so agreed, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within 30 days, either may request that selection be made by a judge of a court having jurisdiction. Each party will pay the expenses it incurs and bear the expenses of the third arbitrator equally.

   (2) Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives. Local rules of law as to arbitration procedure and evidence will apply. A decision agreed to by two of the arbitrators will be binding.

   b. Time Limitation

   (1) We will not be liable for uninsured motorists coverage benefits unless the "insured" gives us written notice of the "insured's" intent to pursue an uninsured motorists coverage claim under this Coverage Form within three years after the date of the "accident" that caused the "bodily injury". However, the "insured" may make an uninsured motorists coverage claim within three years after the earliest of the following:

   (a) The date the "insured" knew that the tortfeasor was uninsured.

   (b) The date the "insured" knows or should have known that coverage was denied by the tortfeasor's insurer.

   (c) The date the "insured" knows or should have known of the insolvency of the tortfeasor's insurer.

   (2) If we and the "insured" do not settle a claim for uninsured motorists coverage under this Coverage Form for which the "insured" has given us timely written notice in accordance with Paragraph **(1)** above, we will not be liable for uninsured motorists coverage benefits unless within three years after the date the "insured" provides us with such written notice the "insured":

   (a) Files a lawsuit against us for uninsured motorists coverage benefits under this Coverage Form; or

   (b) Requests arbitration pursuant to the provisions of this Coverage Form.

F. Additional Definitions

As used in this endorsement:

1. "Family member" means a person related to an individual Named Insured by blood, marriage or adoption, who is a resident of such Named Insured's household, including a ward or foster child.

2. "Occupying" means in, upon, getting in, on, out or off.

3. "Uninsured motor vehicle" means a land motor vehicle or "trailer":

   a. For which no liability bond or policy at the time of an "accident" provides at least the amount specified in Section 28-4009 of the Arizona Revised Statutes;

   b. For which an insuring or bonding company denies coverage or is or becomes insolvent; or

   c. That is a hit-and-run vehicle and neither the driver nor owner can be identified. The vehicle must either:

   (1) Hit an "insured", a covered "auto" or a vehicle an "insured" is "occupying"; or

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(2) Cause "bodily injury" to an "insured" without hitting an "insured", a covered "auto" or a vehicle an "insured" is "occupying", provided the facts of the "accident" can be corroborated by any additional and confirming testimony, fact or evidence that strengthens and adds weight or credibility to the "insured's" representation of the "accident".

However, "uninsured motor vehicle" does not include any vehicle designed for use mainly off public roads while not on public roads.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ARIZONA UNDERINSURED MOTORISTS COVERAGE

For a covered "auto" licensed or principally garaged in, or "auto dealer operations" conducted in, Arizona, this endorsement modifies insurance provided under the following:

AUTO DEALERS COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

This endorsement changes the policy effective on the inception date of the policy unless another date is indicated below.

Named Insured: TAHOR ENTERPRISES, LLC

Endorsement Effective Date: 10/14/2024

SCHEDULE

Limit Of Insurance: $	1,000,000 **Each "Accident"**
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

A. Coverage

1. We will pay all sums the "insured" is legally entitled to recover as compensatory damages from the owner or driver of an "underinsured motor vehicle". The damages must result from "bodily injury" sustained by the "insured" caused by an "accident". The owner's or driver's liability for these damages must result from the ownership, maintenance or use of the "underinsured motor vehicle".
2. Any judgment for damages arising out of a "suit" brought without our written consent is not binding on us.

B. Who Is An Insured

If the Named Insured is designated in the Declarations as:

1. An individual, then the following are "insureds":
   a. The Named Insured and any "family members".
   b. Anyone else "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.
   c. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".
2. A partnership, limited liability company, corporation or any other form of organization, then the following are "insureds":
   a. Anyone "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.
   b. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".

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C. Exclusions

This insurance does not apply to any of the following:

1. Punitive or exemplary damages.
2. Any claim settled without our consent.
3. The direct or indirect benefit of any insurer or self-insurer under any workers' compensation, disability benefits or similar law.
4. Anyone using a vehicle without a reasonable belief that the person is entitled to do so.
5. "Bodily injury" arising directly or indirectly out of:
   a. War, including undeclared or civil war;
   b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
   c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

D. Limit Of Insurance

1. Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for all damages resulting from any one "accident" is the Limit Of Insurance for Underinsured Motorists Coverage shown in the Schedule or Declarations.
2. No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Liability Coverage form, Medical Payments Coverage endorsement or Uninsured Motorists Coverage endorsement attached to this Coverage Part.

   We will not make a duplicate payment under this coverage for any element of "loss" for which payment has been made by or for anyone who is legally responsible, including all sums paid under the policy's Covered Autos Liability Coverage.
3. We will reduce the "insured's" total damages by any amount available to that "insured", under any bodily injury liability bonds or policies applicable to the "underinsured motor vehicle", that such "insured" did not recover as a result of a settlement between that "insured" and the insurer of an "underinsured motor vehicle". However, any reduction of the "insured's" total damages will not reduce the limit of liability for this coverage.

E. Changes In Conditions

The Conditions are changed for Underinsured Motorists Coverage as follows:

1. **Other Insurance** in the Auto Dealers and Business Auto Coverage Forms and **Other Insurance – Primary And Excess Insurance Provisions** in the Motor Carrier Coverage Form are changed by addition of the following:
   a. The reference to "other collectible insurance" applies only to other collectible underinsured motorists insurance.
   b. Any insurance we provide with respect to a vehicle owned by the Named Insured or, if the Named Insured is an individual, any "family member", that is not a covered "auto" for Underinsured Motorists Coverage under this Coverage Form shall be excess over any other collectible underinsured motorists insurance providing coverage on a primary basis.
2. **Duties In The Event Of Accident, Claim, Suit Or Loss** in the Business Auto and Motor Carrier Coverage Forms and **Duties In The Event Of Accident, Claim, Offense, Suit, Loss Or Acts, Errors Or Omissions** in the Auto Dealers Coverage Form are changed by adding the following:
   a. Promptly notify the police if a hit-and-run driver is involved; and
   b. Promptly send us copies of the legal papers if a "suit" is brought.
3. The **Transfer Of Rights Of Recovery Against Others To Us** Condition does not apply to Underinsured Motorists Coverage.
4. The **Two Or More Coverage Forms Or Policies Issued By Us** Condition is replaced by the following:

   Two Or More Coverage Forms Or Policies Issued By Us

   If this Coverage Form and any other Coverage Form or policy issued to the Named Insured by us or any company affiliated with us apply to the same "accident", only one Coverage Form or policy shall be applicable to the "accident". The Named Insured shall select the one Coverage Form or policy that will apply. This condition does not apply to any Coverage Form or policy issued by us or any affiliated company which is excess insurance over this Coverage Form.

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5. The following conditions are added:

a. **Arbitration**

(1) If we and an "insured" disagree whether the "insured" is legally entitled to recover damages from the owner or driver of an "underinsured motor vehicle" or do not agree as to the amount of damages that are recoverable by that "insured", then the matter may be arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Both parties must agree to arbitration. If so agreed, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within 30 days, either may request that selection be made by a judge of a court having jurisdiction. Each party will pay the expenses it incurs and bear the expenses of the third arbitrator equally.

(2) Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives. Local rules of law as to arbitration procedure and evidence will apply. A decision agreed to by two of the arbitrators will be binding.

b. **Time Limitation**

(1) We will not be liable for underinsured motorists coverage benefits unless the "insured" gives us written notice of the "insured's" intent to pursue an underinsured motorists coverage claim under this Coverage Form within three years after the date of the "accident" that caused the "bodily injury", and the "insured" has either made a claim with the tortfeasor's insurer or filed an action against the tortfeasor within the time limits prescribed by Section 12-542 of the Arizona Revised Statutes or within the corresponding limitation period provided under the law of the location where the "accident" occurred. However, the "insured" may make an underinsured motorists coverage claim within three years after the date the "insured" knows or should have known that the tortfeasor has insufficient liability insurance to cover the "insured's" injuries.

(2) If we and the "insured" do not settle a claim for underinsured motorists coverage under this Coverage Form for which the "insured" has given us timely written notice in accordance with Paragraph **(1)** above, we will not be liable for Underinsured Motorists Coverage benefits unless within three years after the date the "insured" provides us with such written notice the "insured":

(a) Files a lawsuit against us for underinsured motorists coverage benefits under this Coverage Form; or

(b) Requests arbitration pursuant to the provisions of this Coverage Form.

F. **Additional Definitions**

As used in this endorsement:

1. "Family member" means a person related to an individual Named Insured by blood, marriage or adoption, who is a resident of such Named Insured's household, including a ward or foster child.

2. "Occupying" means in, upon, getting in, on, out or off.

3. "Underinsured motor vehicle" means a land motor vehicle or "trailer" for which the sum of all bonds or policies applicable at the time of an "accident" does not provide at least the amount an "insured" is legally entitled to recover as damages resulting from "bodily injury" caused by the "accident".

However, "underinsured motor vehicle" does not include any vehicle designed for use mainly off public roads while not on public roads.

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